

25STCV01233 25STCV01233

County: los-angeles

Division: Civil Law and Motion

Department: 509

Hearing date: 2026-09-11

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William E. Ayllon Vilcapoma v. General Motors LLC

PLAINTIFF'S MOTION FOR ATTORNEY'S FEES, COSTS, AND EXPENSES

MOVING PARTY: Plaintiff William E. Ayllon Vilcapoma

RESPONDING PARTY(S): Defendant General Motors, LLC

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a Song-Beverly action. Plaintiff William E. Ayllon Vilcapoma (Plaintiff) alleged he purchased a 2024 Chevrolet Silverado 1500 manufactured by defendant General Motors, LLC (Defendant) that was unsafe and did not conform to the quality and safety guidelines reasonably expected of a motor vehicle.

On May 7, 2026, Plaintiff filed this instant motion to recover their reasonable attorney's fees and costs. Defendant did not file an opposition.

On June 3, 2026, this motion originally came to hearing. Because the motion was unopposed, the Court granted a total of \$25,642.11 in fees and costs.

On July 31, 2026, this Court granted Defendant's motion to vacate the June 3, 2026, order. The Court allowed Defendant to file a supplemental declaration to include the fees and costs incurred after the ruling on the original motion. Defendant opposed.

TENTATIVE RULING:

Plaintiff's Motion for Attorney's Fees is GRANTED in the amount of \$20,057.78.

Plaintiff's Motion for Costs is GRANTED in the amount of \$3,874.86.

Plaintiff is ordered to give notice, unless waived.

DISCUSSION:

Motion for Attorney's Fees, Costs, and Expenses

I. Analysis

A. The Motion is Timely

Defendant argues that this motion is untimely since it was filed greater than 240 days from the date of the settlement. However, timeliness of a fee motion is calculated from the date of judgment or dismissal, not from the date of settlement.

California Rules of Court, Rule 3.1702 (b)(1) states, "[a] notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court -- including attorney's fees on an appeal before the rendition of judgment in the trial court -- must be served and filed within the time for filing a notice of appeal," i.e., within 180 days after notice of entry of judgment. Settlements entered under Code of Civil Procedure section 664.6 are properly treated as judgments for purposes of Rule 3.1702. (*Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644, 649, ["voluntary dismissal, though not appealable, starts the clock running on the time to move for attorney fees when the dismissal concludes the litigation and triggers a right to fees."]); see also *Sanabria v. Embrey* (2001) 92 Cal.App.4th 422, 426-427.) Plaintiff has "at most 180 days after the dismissal to serve and file his motion" for attorneys' fees, and the trial court did not err in denying his motion as untimely where he failed to file his motion for attorneys' fees until after the 180 days had already expired. (*Hatlevig* at p. 650.)

Here, dismissal was entered on November 17, 2025. Under the 180-day clock, the time to file a motion for attorney fees expired on May 16, 2026. Plaintiff filed the motion on May 7, 2026. Therefore, the motion is timely filed.

B. Entitlement to Fees

On September 9, 2025, the parties reached a settlement.

Plaintiff now moves for an order awarding attorney's fee of \$27,454.20. This amount consists of \$22,878.50 in attorney fees and an additional \$4,575.70 in a 1.2 times multiplier. (See Not. of Mot.) Plaintiff seeks costs of \$2,763.61. (Memo of Costs.)

Civil Code, section 1794(d) provides:

(d) If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

(Civ. Code, § 1794, subd. (d) [emphasis added].)

Here, there is no dispute that Plaintiff is the prevailing party under the Song-Beverly Consumer Warranty Act. Accordingly, Plaintiff is entitled to an award of reasonable attorney fees as the prevailing party.

Reasonableness of Fees (Lodestar)

The determination of reasonable amount of attorney fees is within the sound discretion of trial courts. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095; Akins v. Enterprise Rent-A-Car Co. (2000) 79 Cal.App.4th 1127, 1134.) “The determination of what constitutes a reasonable fee generally ‘begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate....” “[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award....” (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of “fees customarily charged by that attorney and others in the community for similar work.” (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal.App.4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal.4th 644, 664.) The burden is on the party seeking attorney fees to prove reasonableness of the fees. (Center for Biological Diversity v. County of San Bernardino (2010) 188 Cal.App.4th 603, 615.)

The Court has broad discretion in determining the amount of a reasonable attorney’s fee award which will not be overturned absent a “manifest abuse of discretion, a prejudicial error of law, or necessary findings not supported by substantial evidence.” (Bernardi v. County of Monterey (2008) 167 Cal. App. 4th 1379, 1393-94.) The Court need not explain its calculation of the amount of attorney’s fees awarded in detail; identifying the factors considered in arriving at the amount will suffice. (Ventura v. ABM Industries Inc. (2012) 212 Cal.App.4th 258, 274-75.)

It should be noted that state trial court opinions are unpublished and have no precedential value. (Neary v. Regents of Univ. of Calif. (1992) 3 Cal.4th 273, 282.) Likewise, “[w]hile unpublished federal district court opinions are citable, they do not constitute binding authority.” (Gong v. City of Rosemead (2014) 226 Cal.App.4th 363, 375.)

1. Reasonable Hourly Rate

Plaintiff’s counsel requests rates between \$325 per hour and \$575 per hour. (Pengilley Decl., Exh. A.) Plaintiff is seeking 39.4 hours for a total of \$18,378.50. (Ibid.) This gives a blended hourly rate of \$466.46 per hour. [FN 1] Here, under the totality of the circumstances and based upon general prevailing rates in the Los Angeles area for this type of litigation, this Court finds that a blended rate of \$466.46 per hour is reasonable given this Court’s considerable experience in Song-Beverly cases, many of which culminate with an attorney’s fees motion. This determination considers the complexity of the case, the quality of services provided, and the attorneys’ experience. The Court considers this fact in addressing the reasonableness of the hours expended.

2. Number of Hours Reasonably Expended

Beginning to end, Plaintiff’s counsel seeks compensation for a total of 39.4 hours plus a flat fee of \$4,500 for prelitigation fees. (Pengilley Decl., Ex. A.) Plaintiff incurred an additional 6.7 hours after the filing of the motion to vacate. (Myers Supp. Decl., Ex. B.)

“It is the burden of the challenging party to point to the specific items challenged [within the moving party’s verified billing invoice], with a sufficient argument and citations to evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488.)

In opposition, Defendant contends the hours purportedly spent by Plaintiff’s counsel are excessive. Defendant highlights multiple entries in the billing records it contends are excessive and duplicative.

Here, this action was filed in January 2025. The docket reflects minimal law and motion practice and there was nothing particularly complex or unique about this case. The issues involved were applicable to other consumers’ vehicles, thereby

triggering economies of scale in terms of Plaintiff's counsel's efficiency in litigating this type of lemon law case. Litigating this matter should not have required anything more than slight factual modification to existing boilerplate. Consistent with these observations, Counsel's billing records reflect a series of repetitive administrative-type tasks.

Considering these facts, this Court ultimately agrees that in some instances, the time quoted is excessive and/or unreasonable under the circumstances. In light of the foregoing discussion, and in view of the totality of the circumstances, the Court finds that the total amount of reasonable attorney's fees in this case, using a lodestar methodology, is \$20,057.78. This was calculated by multiplying the hourly rate of \$466.46 by 43 hours, which this Court deems to be the reasonable time spent on all tasks in the matter, including the fees incurred after the original motion was vacated including the time spent in support of this instant motion, and the anticipated time spent at the hearing.

Plaintiff seeks a multiplier of 1.20. "The award of a multiplier is in the end a discretionary matter largely left to the trial court." (Yes in My Back Yard v. City of Culver City (2023) 96 Cal.App.5th 1103, 1122 [citation and internal quotations omitted].) The Court in its discretion declines to apply a multiplier given this was a relatively standard Song-Beverly case with no novel or complex issues of law.

Accordingly, Plaintiff's Motion for Attorney's Fees is GRANTED in the amount of \$20,057.78.

3. Costs and Expenses

Plaintiff seeks costs in the amount of \$2,763.61. (Memo. Of Costs.) Plaintiff seeks an additional \$1,111.25 in costs incurred after the filing of the motion to vacate. (Myers Supp. Decl., Ex. A.)

The scope of recoverable costs under Civil Code section 1794, subdivision (d), is even broader than the scope of recoverable costs under Code of Civil Procedure, section 1033.5. "[I]n enacting Civil Code section 1794, subdivision (d) the Legislature intended the phrase 'costs and expenses' to cover items not included in 'the detailed statutory definition of 'costs' set forth in Code of Civil Procedure section 1033.5. [Citation.]" (Warren v. Kia Motors Am., Inc. (2018) 30 Cal.App.5th 24, 42.) Plaintiff's costs, including electronic filing fees and deposition costs, are recoverable as they were necessary for the prosecution of this action. (See e.g. Code of Civ. Pro. § 1033.5, subd. (a)(3).)

Further, Defendant challenges Plaintiff's supplemental memorandum of costs. Specifically, Defendant argues that because Defendant failed to appear at the June 3, 2026, hearing, Plaintiff should not be compensated for the court reporter fees incurred during that hearing. (Supp. Opp. at p. 5:27-28, ["Due to a scheduling issue already raised in GM's Motion to Vacate, there was no hearing on that date as GM did not appear."]) This argument is unpersuasive. The Court finds that Plaintiff's requested court reporter expenses are recoverable.

Adding together the two memorandums of cost, the Court finds the total recoverable costs to be \$3,874.86.

Accordingly, Plaintiff's Motion for Costs is GRANTED in the amount of \$3,874.86.

IT IS SO ORDERED.

Dated: September 11, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - It is well settled that utilizing a “blended” hourly rate for lodestar methodology is accepted in Song Beverly attorney’s fee motions. (See, e.g, Mikhaeilpoor v. BMW of N. Am., LLC (2020) 48 Cal.App.5th 240.

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept509@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.